

25TRCV02100 25TRCV02100

County: los-angeles

Division: Civil Law and Motion

Department: 5

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Case Number: 25TRCV02100 Hearing Date: July 10, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

cresencio cruz de la cruz

;

Plaintiff,

vs.

FORD MOTOR COMPANY

, et al.;

Defendants.

Case

No.:

25TRCV02100

Hearing

Date:

June
30, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

plaintiff

CRESENCIO CRUZ DE LA CRUZ'S MOTION TO COMPEL DEPOSITION ATTENDANCE AND
PRODUCTION OF DOCUMENTS BY FORD MOTOR COMPANY

(2)

PLAINTIFF

CRESENCIO CRUZ DE LA CRUZ'S REQUEST FOR MONETARY SANCTIONS

MOVING PARTY: Plaintiff,
Cresencio Cruz De La Cruz

RESPONDING

PARTY: Defendant,
Ford Motor Company

(1)

Plaintiff

Cresencio Cruz De La Cruz's Motion to Compel Deposition Attendance and Production
of Documents by Ford Motor Company is DENIED to Code of Civil Procedure section
2025.450, subdivision (a).

(2)

Plaintiff

Cresencio Cruz De La Cruz's Request for Monetary Sanction is DENIED pursuant to
Code of Civil Procedure section 2025.450, subdivision (g)(1).

The Court considers the moving papers filed on
May 11, 2026, the opposition brief filed on June 16, 2026, and the reply brief

filed on June 23, 2026.

BACKGROUND

Factual Background

On June 25, 2025, plaintiff Cresencio Cruz De La Cruz ("Plaintiff") filed the Complaint against defendants Ford Motor Company ("FMC"), Fox Hills Auto, Inc. dba Airport Marina Ford, and DOES 1 through 10. The Complaint includes the following causes of action: (1) Violation of the Song-Beverly Act – Breach of Express Warranty; (2) Violation of the Song-Beverly Act – Breach of Implied Warranty; and (3) Negligent Repair.

On December 3, 2025, FMC produced a Person Most Qualified ("PMQ") for deposition. (Declaration of Sydney O. Sloas ("Sloas Decl."), ¶ 3.)

On February 10, 2026, Plaintiff served a Notice of Deposition of FMC's PMQ and Custodian(s) of Records on FMC through email, scheduling the deposition for March 11, 2026. (Declaration of Colby Meagle ("Meagle Decl."), ¶¶ 3, 5, Exh. A.) The deposition notice identified twenty-seven matters for examination and seventeen categories of documents. (Meagle Decl., Exh. A.) Furthermore, the email requested three alternative dates by February 1, 2026, should FMC or its counsel be unavailable. (Meagle Decl., ¶ 4, Exh. B, p. 3.)

On February 24, 2026, Plaintiff's counsel followed up to determine whether the scheduled deposition date was acceptable and requested alternative dates if it was not. (Meagle Decl., ¶ 6, Exh. B, p. 3.) This inquiry was made with the understanding that FMC's objections were not yet due. (Meagle Decl., ¶ 6, Exh. B, p. 3.)

On March 5, 2026, FMC served its responses and objections to the deposition notice. (Meagle Decl., ¶ 7, Exh. C; Sloas Decl., ¶ 5, Exh. 2.) FMC contended that Plaintiff had unilaterally scheduled the deposition, asserted that it had already produced a PMQ witness for Matters Nos. 1 through 5, and declined to provide a witness for Matters Nos. 6 through 27. (Meagle Decl., ¶ 7, Exh. C.)

On March 11, 2026, Plaintiff's counsel emailed FMC's counsel to request alternative dates for the deposition. (Meagle Decl., ¶ 10, Exh. B, p. 2.) They stated, "In the event that your office does not provide alternative dates on or before the noticed time, to protect our clients' rights we will proceed by appearing on the Microsoft Teams link below to memorialize your failure to appear."
(Meagle Decl., ¶ 10, Exh. B, p. 2.)

Later that same day, Plaintiff's counsel reiterated that they had already attempted to meet and confer with FMC regarding the rescheduling of the depositions, but FMC had failed to do so.
(Meagle Decl., ¶ 11, Exh. B, p. 2.)

Plaintiff's counsel then requested alternative dates by May 18, 2026. (Meagle Decl., ¶ 11, Exh. B, p. 2.)

In response, FMC's counsel stated that FMC had "already provided a witness for several of the matters sought in Plaintiff's Notice and objected to all other matters. As such, no additional dates will be provided. Should you wish to meet and confer further, please provide your availability for a call." (Meagle Decl., ¶ 12, Exh. B, p. 1.)

On March 17, 2026, Plaintiff's counsel conceded that "[t]he prior PMQ deposition in this matter was limited to Statutory Matters 1–8 only." (Meagle Decl., ¶ 13, Exh. B, p. 1.) However, they asserted that "[t]he additional matters in Plaintiff's notice address separate subject areas that were not covered during that examination. In particular, the topics concern Ford's policies, procedures, and internal practices relevant to warranty administration and compliance with the Song-Beverly Act, including how Ford evaluates nonconformities, determines whether a reasonable number of repair attempts has occurred, and tracks and evaluates warranty repair data and related information." (Meagle Decl., ¶ 13, Exh. B, p. 1.) Thus, Plaintiff's counsel considered this a "scheduling issue" only and requested the PMQ's availability to avoid motion practice. (Meagle Decl., ¶ 13, Exh. B, p. 1.) They also specified their availability for a telephone conference on March 23, 2026, at 5:00 p.m. (Meagle Decl., ¶ 13, Exh. B, p. 1.)

FMC has not provided alternative dates and continues to maintain its objections. (Meagle Decl., ¶ 14.)

On June 11, 2026, the parties executed a stipulation and protective order, which Plaintiff's counsel signed on May 28, 2026. (Sloas Decl., ¶ 6.) FMC asserted its commitment to "will produce any confidential documents identified in its response." (Sloas Decl., ¶ 7.)

LEGAL STANDARD

Code of Civil Procedure section 2025.450, subdivision (a) provides:

"If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (Code Civ. Proc., § 2025.450, subd. (a).)

"Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action. Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter, as well as of the existence, description, nature, custody, condition, and location of any document, electronically stored information, tangible thing, or land or other property." (Code Civ. Proc., § 2017.010.)

The motion must "be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance." (Code Civ. Proc., § 2025.450, subd. (b)(2).)

"If a motion under subdivision (a) is granted, the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) in favor

of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2025.450, subd. (g)(1).)

Under Code of Civil Procedure

section 2023.030, subdivision (a), “The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2023.030, subd.

(a).) “Misuses of the discovery process

include ... (h) Making or opposing, unsuccessfully and without substantial justification, a motion to compel or to limit discovery. ¶ (i)

Failing to confer or to attempt to confer, in person, by telephone, or by videoconference with an opposing party or attorney in a reasonable and good faith attempt to resolve informally any dispute concerning discovery, if the section governing a particular discovery motion requires the filing of a declaration stating facts showing that an attempt at informal resolution has been made..” (Code Civ. Proc., § 2023.010, subds. (h)-(i).)

“The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” (Cal. Rules of Court, rule 3.1348(a).)

MEET AND CONFER REQUIREMENT

Plaintiff must

meet and confer with FMC before bringing this motion, either by contacting the deponents to inquire about the nonappearance or by following Code of Civil Procedure section 2016.040. (Code Civ.

Proc., § 2025.450, subd. (b)(2).) Code

of Civil Procedure section 2016.040 states that a meet and confer declaration “in support of a motion [to compel] shall state facts showing a reasonable and good

faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., § 2016.040.) ““The parties must present to each other the merits of their respective positions with the same candor, specificity and support during informal negotiations as during the briefing of discovery motions. Only after all the cards have been laid on the table, and a party has meaningfully assessed the relative strengths and weaknesses of its position in light of all available information, can there be a ‘sincere’ effort to resolve the matter.”” (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1293-1294, quoting Townsend v. Superior Court (1998) 61 Cal.App.4th 1431, 1435.)

The Court finds that Plaintiff sufficiently met and conferred regarding the deposition dates and matters for examination.

On February 10, 2026, Plaintiff served a Notice of Deposition of FMC's PMQ and Custodian(s) of Records on FMC through email, scheduling the deposition for March 11, 2026. (Meagle Decl., ¶¶ 3, 5, Exh. A.) Furthermore, the email requested three alternative dates by February 1, 2026, should FMC or its counsel be unavailable. (Meagle Decl., ¶ 4, Exh. B, p. 3.)

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In response, FMC's counsel stated that FMC had "already provided a witness for several of the matters sought in Plaintiff's Notice and objected to all other matters. As such, no additional dates will be provided. Should you wish to meet and confer further, please provide your availability for a call." (Meagle Decl., ¶ 12, Exh. B, p. 1.)

On March 17, 2026, Plaintiff's counsel conceded that "[t]he prior PMQ deposition in this matter was limited to Statutory Matters 1–8 only." (Meagle Decl., ¶ 13, Exh. B, p. 1.) However, they asserted that "[t]he additional matters in Plaintiff's notice address separate subject areas that were not covered during that examination. In particular, the topics concern Ford's policies, procedures, and internal practices relevant to warranty administration and compliance with the Song-Beverly Act, including how Ford evaluates nonconformities, determines whether a reasonable number of repair attempts has occurred, and tracks and evaluates warranty repair data and related information." (Meagle Decl., ¶ 13, Exh. B, p. 1.) Thus, Plaintiff's counsel considered this a "scheduling issue" only and requested the PMQ's availability to avoid motion practice. (Meagle Decl., ¶ 13, Exh. B, p. 1.) They also specified their availability for a telephone conference on March 23, 2026, at 5:00 p.m. (Meagle Decl., ¶ 13, Exh. B, p. 1.)

FMC has not provided alternative dates and continues to maintain its objections. (Meagle Decl., ¶ 14.) Consequently, the Court finds that Plaintiff met and conferred regarding the deposition dates and matters for examination.

DISCUSSION

Plaintiff seeks

(i) an order compelling FMC to produce its PMQ for deposition on twenty-seven matters for examination, along with the requested documents spanning seventeen distinct categories, and (ii) an award of monetary sanctions against FMC and its counsel. (Motion, p. 13:2-5.) However, the Court has identified two significant issues concerning these requests.

First, the

Court notes that Plaintiff has not provided a legal analysis demonstrating the relevance of each of the twenty-seven matters proposed for examination. In the absence of these analyses, the Court cannot ascertain the appropriateness and relevance of the matters for deposition. Although the Court acknowledges that Plaintiff is not required to demonstrate good cause by “identify[ing] a disputed fact of consequence and explain how the discovery sought will tend to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact[,]” Plaintiff must still establish the relevance of each matter. (Opp., p. 7:24-26; see Code Civ. Proc., §§ 2017.010, 2025.450, subd. (a).) A generalized argument that fails to meet this burden transfers the responsibility of establishing relevance from Plaintiff to the Court.

Here, Plaintiff

presents a generalized argument that they apply to all matters: “Broadly speaking, Plaintiff’s categories for examination seek testimony on categories including Plaintiff’s request for repurchase, repairs, warranty claims, and warranty coverage, and [FMC’s] policy and procedures regarding repurchases and customer complaints. Matters related to the purchase of the vehicle, repairs performed on the vehicle, warranty claims regarding the vehicle, phone call handling of complaints and requests for repurchase of the vehicle, and [FMC’s] decision not to issue a buy back are relevant to proving Plaintiff’s claims under the Song-Beverly Act.

Additionally,

[FMC’s] policies and procedures regarding the manner in which it deals with similar complaints are relevant to determining whether Plaintiff is entitled to a civil penalty. More specifically, these matters are relevant to an analysis of the criteria that [FMC] uses to determine whether a vehicle is a ‘lemon’ in compliance with the Song Beverly

Consumer Warranty Act

and subject to a buyback or replacement.

... ¶ The requested information is also relevant to determine whether [FMC], in dealing with Plaintiff, acted in good faith and in

a manner that comports with the lemon law or, instead, sought to avoid repurchasing or replacing Plaintiff's vehicle. This determination is important because, although Plaintiff is entitled to a civil penalty if [FMC's] violation of the Song-Beverly Act was willful, [FMC's] violation is not willful if its failure to replace or refund was the result of a good faith and reasonable belief that the facts imposing the statutory obligation were not present. [FMC's] policies and procedures are, therefore, relevant to show whether [FMC's] conduct lacked good faith." (Motion, pp.

7:8-8:3; Plaintiff's Separate Statement, pp. 3:16-4:11, 7:23-8:18, 11:16-12:11, 15:11-16:6, 19:25-20:20, 23:21-24:16, 27:18-28:13, 31:28-32:23, 36:10-37:5, 40:19-41:14, 45:4-27, 49:22-40:17, 54:12-55:7, 59:1-24, 63:19-64:14, 68:9-69:4, 72:26-73:21, 77:15-78:10, 81:23-82:18, 86:11-87:6, 91:6-92:1, 95:19-96:14, 100:4-27, 104:20-105:15, 109:8-110:3, 113:23-114:18, 118:6-119:1.)

While

Plaintiff argues "broadly" why the matters are relevant, they do not provide an argument as to why each specific matter is relevant. Therefore, Plaintiff's motion to compel FMC to produce a PMQ regarding these matters is DENIED.

Finally, although

Plaintiff requests the production of documents referenced in the deposition notice, they have not provided any legal analysis to explain why there is good cause to compel the production of each individual category of document. (Motion, p. 13:2-4.) This argument is notably absent from

Plaintiff's motion, separate statement, and reply brief. As Plaintiff articulates, "where a party [] seeks production of documents at the deposition [] that party [must] set forth specific facts showing good cause justifying the production of those documents[.]" and "[g]ood cause is established by a showing that the request is made in good faith and the documents sought are relevant to the subject matter of the action and material to the issues in the litigation." (Motion, p. 6:17-21.) The Plaintiff has failed to carry its burden.

As such, Plaintiff's

motion in its entirety, including the associated request for monetary sanctions, is DENIED.

ORDERS

1) Plaintiff

Cresencio Cruz De La Cruz's Motion to Compel Deposition Attendance and Production of Documents by Ford Motor Company is DENIED.

2) Plaintiff

Cresencio Cruz De La Cruz's Request for Monetary Sanction is DENIED.

3) Plaintiff

is ordered to give notice of this Court's ruling.

IT IS SO ORDERED.

DATED: July 10, 2026

Tamara
Hall

Judge
of the Superior Court